

CHAPTER - 6

OFFENCES AFFECTING THE HUMAN BODY

CULPABLE HOMICIDE- Section 299

MEANING:

Homicide means killing of a human being by another human being. A homicide can be lawful or unlawful. Lawful homicide includes situations where a person who has caused the death of another cannot be blamed for his death. For example, in exercising the right of private defense or in other situations explained in Chapter IV of IPC covering General Exceptions. Unlawful homicide means where the killing of another human is not approved or justified by law. Culpable Homicide is in this category. Culpable means blame worthy. Thus, Culpable Homicide means killing of a human being by another human being in a blameworthy or criminal manner.

Section 299 of the Indian Penal Code defines the offence of Culpable Homicide. It states as follows - Whoever causes death by doing an act with the intention of causing death, or with the intention of causing such bodily injury as is likely to cause death, or with the knowledge that he is likely by such act to cause death, commits the offence of Culpable Homicide.

Explanation 1 - A person who causes bodily injury to another who is labouring under a disorder, disease or bodily infirmity, and thereby accelerates the death of that other, shall be deemed to have caused his death.

Explanation 2 - Where death is caused by bodily injury, the person who causes such bodily injury shall be deemed to have caused the death, although by resorting to proper remedies and skillful treatment the death might have been prevented.

Explanation 3 - The causing of the death of child in the mother's womb is not homicide. But it may amount to Culpable Homicide to cause the death of a living child, if any part of that child has been brought forth, though the child may not have breathed or been completely born.

ILLUSTRATION: Aman lays sticks and turf over a pit, with the intention of thereby causing death, or with the

knowledge that death is likely to be thereby caused. Harish, believing the ground to be firm, treads on it, falls in and is killed. Aman has committed the offence of culpable homicide.

ILLUSTRATION: Tilak knows Divya to be behind a bush. Akash does not know it. Tilak, intending to cause, or knowing it to be likely to cause Divya's death, induces Akash to fire at the bush. Akash fires and kills Divya. Here Akash may be guilty of no offence; but Tilak has committed the offence of culpable homicide.

ILLUSTRATION: Aman, by shooting at a fowl with intent to kill and steal it, kills Ashish, who is behind a bush; Aman not knowing that he was there. Here, although Aman was doing an unlawful act, he was not guilty of culpable homicide, as he did not intend to kill Ashish, or to cause death by doing an act that he knew was likely to cause death.

ESSENTIAL ELEMENTS OF CULPABLE HOMICIDE

- (a) **Death of a human being is caused** - It is required that the death of a human being is caused. However, it does not include the death of an unborn child unless any part of that child is brought forth.
- (b) **By doing an act** - Death may be caused by any act for example, by poisoning or by hurting with a weapon. Here act includes even on omission of an act for which one is obligated by law to do.
- (c) **Intention or Knowledge** - There must be an intention of any of the following –
 - Intention of causing death - The doer of the act must have intended to cause death.
 - Intention of causing such bodily injury as is likely to cause death - The intention of the offender may not have been to cause death but only an injury that is likely to cause the death of the injured.

ILLUSTRATION: Arun might intended only to hit on the skull of a person so as to make him unconscious, but the person dies. In this case, the intention of the person was only to cause an injury but the injury is such that it is likely to cause death of the person. Thus, he is guilty of Culpable Homicide.

MURDER – SECTION 300

MEANING:

Culpable homicides amount to murder when they are committed with a higher degree of intention or knowledge as per the conditions laid down under section 300 IPC.

Section 300 of the Indian Penal Code, 1860, states as follows:

Culpable Homicide is Murder if the act by which the death is caused is done

- With the intention of causing death or
- With an intention of causing such bodily injury as the offender knows to be likely to cause the death of the person, or
- With an intention of causing such bodily injury as is sufficient in ordinary course of nature to cause death.
- It is also Murder if the person committing the act knows that the act is so dangerous that it will cause death or such injury as is likely to cause

death in all probability and he has no valid reason for doing that act.

ILLUSTRATION: A shoots Z with the intention of killing him. Z dies in consequence. A commits murder.

ILLUSTRATION: A, knowing that Z is labouring under such a disease that a blow is likely to cause his death, strikes him with the intention of causing bodily injury. Z dies in consequence of the blow. A is guilty of murder, although the blow might not have been sufficient in the ordinary course of nature to cause the death of a person in a sound state of health. But if A, not knowing that Z is labouring under any disease, gives him such a blow as would not in the ordinary course of nature kill a person in a sound state of health, here A, although he may intend to cause bodily injury, is not guilty of murder, if he did not intend to cause death, or such bodily injury as in the ordinary course of nature would cause death.

ILLUSTRATION: A intentionally gives Z a sword-cut or club-wound sufficient to cause the death of a man in the ordinary course of nature. Z dies in consequence. Here A is guilty of murder, although he may not have intended to cause Z's death.

ILLUSTRATION: A without any excuse fires a loaded cannon into a crowd of persons and kills one of them. A is guilty of murder, although he may not have had a premeditated design to kill any particular individual.

DISTINCTION BETWEEN 'MURDER' AND 'CULPABLE HOMICIDE NOT AMOUNTING TO MURDER'

Culpable Homicide	Murder
A person commits Culpable Homicide if the act by which death is caused is done	Subject to certain exceptions, Culpable Homicide is Murder if the act by which death is caused is done
INTENTION	
(a) with the intention of causing death; or	1. with the intention of causing death; or
(b) with an intention to cause such bodily injury as is likely to cause death.	2. with an intention to cause such bodily injury as the offender knows to be likely to cause death of the person to whom the harm is caused.
	3. with an intention of causing bodily injury to any person and the bodily injury intended to be inflicted is sufficient in ordinary course of nature to cause death.
KNOWLEDGE	
(c) with the knowledge that such an act is likely to cause death.	4. With the knowledge that the act is so imminently dangerous that it must in all probability cause death.

SITUATIONS WHERE CULPABLE HOMICIDE DOES NOT AMOUNT TO MURDER

(1) If the offender does an act that causes death because of grave and sudden provocation by the other.

Culpable Homicide is not Murder if the offender, whilst deprived of the power of self-control by grave and sudden provocation, causes the death of the person who gave the provocation or causes the death of any other person by mistake or accident.

The above exception is subject to certain conditions-

- (a) The provocation is not sought or voluntarily provoked by the offender as an excuse for killing or doing harm to any person.
- (b) The provocation is not given by anything done in obedience to the law, or by a public servant in the lawful exercise of the powers of such public servant.
- (c) The provocations not given by anything done in the lawful exercise of the right of private defence.

Explanation-Whether the provocation was grave and sudden enough to prevent the offence from amounting to Murder is a question of fact.

ILLUSTRATION: Y gives grave and sudden provocation to A. A, on this provocation, fires a pistol at Y, neither intending nor knowing himself to be likely to kill Z, who is near him, but out of sight. A kills Z. Here A has not committed Murder, but merely Culpable Homicide.

ILLUSTRATION: A, under the influence of passion excited by a provocation given by Z, intentionally kills, Y, Z's child. This is Murder, in as much as the provocation was not given by the child, and the death of the child was not caused by accident or misfortune in doing an act caused by the provocation.

(2) If the offender causes death while exceeding the right to private defense in good faith.

Culpable Homicide is not Murder if the offender, in the exercise in good faith of the right of private defence of person or property, exceeds the power given to him by law and causes the death of the person against whom he is exercising such right of defence without premeditation, and without any intention of doing more harm than is necessary for the purpose of such defence.

ILLUSTRATION- Z attempts to horsewhip A, not in such a manner as to cause grievous hurt to A. A draws out a pistol. Z persists in the assault. A believing in good faith that he can by no other means prevent himself from being horsewhipped, shoots Z dead. A has not committed Murder, but only Culpable Homicide.

(3) If the offender is a public servant and does an act that he, in good faith, believes to be lawful.

Culpable Homicide is not Murder if the offender, being a public servant or aiding a public servant acting for the advancement of public justice, exceeds the powers given to him by law, and causes death by doing an act which he, in good faith, believes to be lawful and necessary for the due discharge of his duty as such public servant and without ill-will towards the person whose death is caused.

(4) If the act happens in a sudden fight in the heat of passion.

Culpable Homicide is not Murder if it is committed without premeditation in a sudden fight in the heat of passion upon a sudden quarrel and without the offenders having taken undue advantage or acted in a cruel or unusual manner.

Explanation-It is immaterial in such cases which party offers the provocation or commits the first assault.

(5) If the deceased is above 18 and the death is caused by his own consent

Culpable Homicide is not Murder when the person whose death is caused, being above the age of eighteen years, suffers death or takes the risk of death with his own consent.

ILLUSTRATION- A, by instigation, voluntarily causes, Z, a person under eighteen years of age to commit suicide. Here, on account of Z's youth, he was incapable of giving consent to his own death; A has therefore abetted Murder.

HURT – SECTION 319

MEANING:

In normal sense, hurt means to cause bodily injury and/or pain to another person.

Section 319 of the Indian Penal Code defines Hurt as follows:

Whoever causes bodily pain, disease, or infirmity to any person is said to cause hurt.

ESSENTIAL INGREDIENTS OF HURT:

- (1) Bodily pain, disease or infirmity must be caused - Bodily pain, except such slight harm for which nobody would complain, is hurt.

ILLUSTRATION: Aman pricks Divyanshu with pointed object like a needle or Akash punching Arun in the face.

- (2) The duration of the pain is immaterial.

Please Note: Infirmity means when any body organ is not able to function normally. It can be temporary or permanent. It also includes state of mind such as hysteria or terror.

- (3) It should be caused due to a voluntary act of the accused.

When there is no intention of causing death or bodily injury as is likely to cause death, and there is no knowledge that inflicting such injury would cause death, the accused would be guilty of hurt if the injury is not serious.

If the accused did not know about any special condition of the deceased and causes death because of hurt, he will be held guilty of only hurt.

ILLUSTRATION: Aman kicked Arun and Arun died because of a diseased spleen, he was held guilty of only hurt.

GRIEVOUS HURT - SECTION 320

Cases of severe hurt are classified under grievous hurt. Section 320 of the Indian Penal Code, 1860, states that the following kinds of hurt only are designated as "Grievous"-

1. Emasculation

Please Note: Please Note: The destruction of private organ of a human being is known as emasculation.

2. Permanent privation of the sight of either eye.
3. Permanent privation of the hearing of either ear.
4. Privation of any member or a joint.
5. Destruction or permanent impairing of powers of any member or joint.
6. Permanent disfigurement of the head or face.
7. Fracture or dislocation of a bone or tooth.
8. Any hurt which endangers life or which causes the sufferer to be, during the space of twenty days, in

severe body pain or unable to follow his ordinary pursuits

ILLUSTRATION: A, intending of knowing himself to be likely permanently to disfigure Z's face, gives Z a blow which does not permanently disfigure Z's face, but which causes Z to suffer severe bodily pain for the space of twenty days. A has voluntarily caused grievous hurt.

DISTINCTION BETWEEN SIMPLE HURT AND GRIEVOUS HURT

SIMPLE HURT	GRIEVOUS HURT
Simple hurt is defined in Section 319.	Only hurts that are defined in section 320 are called Grievous Hurt.
Injury is committed on the external part of the body	There may be injury of external or internal part of the body causing bodily pain.
Punishment is of one year or fine.	Punishment is of seven year or fine.

WRONGFUL RESTRAINT - SECTION 339

MEANING:

Whoever voluntarily obstructs any person so as to prevent that person from proceeding in any direction in which that person has right to proceed, is said wrongfully to restrain that person.

Wrongful restraint means preventing a person from going to a place where he has a right to go.

Section 339 of the Indian Penal Code, 1860, defines the offence of Wrongful restraint. It states as follows:

Whoever voluntarily obstructs any person so as to prevent that person from proceeding in any direction in which that person has a right to proceed, is said wrongfully to restrain that person.

Exception - The obstruction of a private way over land or water which a person in good faith believes himself to have a lawful right to obstruct, is not an offence within the meaning of this section.

ILLUSTRATION: A obstructs a path along which Z has a right to pass, A not believing in good faith that he has a right to stop the path. Z is thereby prevented from passing. A wrongfully restrains Z.

ESSENTIAL INGREDIENTS:

- (1) An obstruction- -Obstruction means physical obstruction, though it may cause by physical force or by the use of menaces or threats. When

such obstruction is wrongful it becomes the wrongful restraint

- (2) Obstruction prevented complainant from proceeding in a certain direction.

WRONGFUL CONFINEMENT - SECTION 340

In wrongful confinement, a person is kept within certain limits out of which he wishes to go and has a right to go. There is restraint from proceeding in all directions beyond a certain area. One may even be wrongfully confined in one's own country where by a threat issued to a person prevents him from leaving the shores of his land.

Section 340 of the Indian Penal Code, 1860, defines the offence of wrongful confinement. It states as follows:

Whoever wrongfully restrains any person in such a manner as to prevent that person from proceedings beyond certain circumscribing limits, is said "wrongfully to confine" that person.

ILLUSTRATION: A causes Z to go within a walled space, and locks Z in Z is thus prevented from proceeding in any direction beyond the circumscribing line of wall. A wrongfully confines Z.

ILLUSTRATION: A places men with firearms at the outlets of a building, and tells Z that they will fire at Z if Z attempts leave the building. A wrongfully confines Z.

Essential Ingredients:

- (1)- Wrongful restraint of a person
- (2)- Such restraint must prevent that person from proceeding beyond certain limits

DISTINCTION BETWEEN WRONGFUL RESTRAINT AND WRONGFUL CONFINEMENT

WRONGFUL RESTRAINT	WRONGFUL CONFINEMENT
It is preventing a person from proceeding in such direction in which that person has a right to proceed	It is keeping a person within certain prescribed limits out of which he has right and wishes to get out.
It is partial suspension of a person liberty and person is free to move anywhere other than that particular direction.	It is total suspension of liberty beyond certain prescribed limits.
It is not a serious offence with less punishment.	It is a serious offence with severe punishment
It is not a form of wrongful confinement.	It is a form of wrongful restraint.

FORCE - SECTION 349

The term 'Force' defined in section 349 contemplates force used by one human being on another human being.

In order to constitute force, there must be at least: -

- (i) Causing of a motion
- (ii) Change of a motion or
- (iii) Cessation of a motion.

Section 349 states as follows:

A person is said to use force to another if he causes motion, change of motion, or cessation of motion to that other, or if he causes to any substance such motion, or change of motion, or cessation of motion as brings that substance into contact with any part of that other's body, or with anything which that other is wearing or carrying, or with anything so situated that such contact affects that other's sense of feeling: Provided that the person causing the motion, or change of motion, or cessation of motion, causes that motion, change of motion, or cessation of motion in one of the three ways hereinafter described:

First- By his own bodily power.

Secondly- By disposing any substance in such a manner that the motion or change or cessation of motion takes place without any further act on his part, or on the part of any other person.

Thirdly- By inducing any animal to move, to change its motion, or to cease to move.

CRIMINAL FORCE - SECTION 350

Force becomes criminal only when it is used without consent and in order of committing offence. when it is used to cause injury, fear or annoyance to another to whom the force is used.

Section 350 of the Indian Penal Code, 1860, states that whoever intentionally uses force to any person, without that person's consent, in order to the committing of any offence, or intending by the use of such force to cause, or knowing it to be likely that by the use of such force he will cause injury, fear or annoyance to the person to whom the force is used, is said to use criminal force to that other.

The essential ingredients of this section are as follows:

- (i) Intentional use of force to any person.

- (ii) Such Force must have been used without the person's consent
- (iii) The Force must have been used:
 - (a) In order to committing of an offence.
 - (b) Intending to cause or knowing that is likely to cause Injury, fear or the annoyance to the person to whom the Force is used.

ILLUSTRATION: Z is sitting in a moored boat on a river. A unfastens the moorings, and thus intentionally causes the boat to drift down the stream. Here A intentionally causes motion to Z, and he does this by disposing substances in such a manner that the motion is produced without any other action on any person's part. A has therefore intentionally used force to Z; and if he has done so without Z's consent, in order to the committing of any offence, or intending or knowing it to be likely that this use of force will cause injury, fear or annoyance to Z, A has used criminal force to Z.

ILLUSTRATION: A incites a dog to spring upon Z, without Z's consent. Here, if A intends to cause injury, fear or annoyance to Z, he uses criminal force to Z.

ILLUSTRATION: A intentionally pulls up a Woman's veil. Here A intentionally uses force to her, and if he does so without her consent intending or knowing it to be likely that he may thereby injure, frighten or annoy her, he has used criminal force to her.

ASSAULT – SECTION 351

An assault is nothing more than a threat of violence exhibiting an intention to use criminal force, and the present ability and intention to carry the threat into execution. The Section basically requires two things:

- (i) Making of any gesture or preparation by a person in the presence of another.
- (ii) Intention or knowledge of the likelihood that such gesture or preparation will cause the person present to apprehend that the person making it is about to use Criminal Force to him.

Section 351 of the Indian Penal Code, 1860, states that whoever makes any gesture, or any preparation intending or knowing it to be likely that such gesture or preparation will cause any person present to apprehend that he who makes that gesture or preparation is about to use criminal force to that person, is said to commit an assault.

Explanation- Mere words do not amount to an assault. But the words which a person uses may give to his

gestures or preparation such a meaning as may make those gestures or preparations amount to an assault.

ILLUSTRATION: A shakes his fist at Z, intending or knowing it to be likely that he may thereby cause Z to believe that A is about to strike Z. A has committed an assault.

ILLUSTRATION: A begins to unloose the muzzle of a ferocious dog, intending or knowing it to be likely that he may thereby cause Z to believe that he is about to cause the dog to attack Z. A has committed an assault upon Z.

Gesture or Preparation The following have been held to be instances of assault:

- (i) Pointing of a gun, whether loaded or unloaded
- (ii) Fetching a Sword and advancing towards victim
- (iii) Lifting one's Lathi
- (iv) Throwing brick into another's house
- (v) Advancing with a threatening attitude to strike blows.

SEXUAL HARASSMENT AND PUNISHMENT FOR SEXUAL HARASSMENT – SECTION 354A

A man shall be guilty of the offence of sexual harassment if he commits any of the following acts-

- (i) physical contact and advances involving unwelcome and explicit sexual overtures; or
- (ii) a demand or request for sexual favours; or
- (iii) showing pornography against the will of a woman; or
- (iv) making sexually coloured remarks

Examples of Sexual Harassment; Unwelcome touching
Suggestive comments or jokes Unwanted invitation to meet in private or for sex Intrusive questions about a person's body or private life Unwanted/vulgar text messages or E-mails Sending Pornography.

ASSAULT OR USE OF CRIMINAL FORCE TO WOMAN WITH INTENT TO DISROBE - SECTION 354B

Section 354B speaks about the use of criminal force or assault with the intention to disrobe a woman without her will. The Section punishes abetment of such offence.

It is pertinent to note that disrobing a woman means to take the woman's clothes off against her will or to compel her to take her clothes off against her will.

Section 354B states that:

Any man who assaults or uses criminal force to any woman or abets such act with the intention of disrobing or compelling her to be naked, shall be punished with

imprisonment of either description for a term which shall not be less than three years but which may extend to seven years, and shall also be liable to fine.

VOYEURISM - SECTION 354C

Section 354C of the Indian Penal Code makes a man liable if he intentionally watches or captures the picture of a woman doing private acts, which are to be performed in the utmost privacy and the woman believes that she is not observed by anyone.

Also, if a woman gives her consent to capture her image or allows to do any act, but not with the purpose that it will be exposed to a third person. If the person shares the picture or spreads it on a wide scale, his act will amount to the offence under the purview of this section and shall be liable to punishment.

Section 354C states as follows:

Any man who watches, or captures the image of a woman engaging in a private act in circumstances where she would usually have the expectation of not being observed either by the perpetrator or by any other person at the behest of the perpetrator or disseminates such image shall be punished on first conviction with imprisonment of either description for a term which shall not be less than one year, but which may extend to three years, and shall also be liable to fine, and be punished on a second or subsequent conviction, with imprisonment of either description for a term which shall not be less than three years, but which may extend to seven years, and shall also be liable to fine.

Private Act:

It includes an act of watching carried out in a place which, in the circumstances, would reasonably be expected to provide privacy and where the victim's genitals, posterior or breasts are exposed or covered only in underwear; or the victim is using a lavatory; or the victim is doing a sexual act that is not of a kind ordinarily done in public.

STALKING – SECTION 354D

Any man who follows a woman, contacts her or attempts to contact her for personal interaction time and again even after the woman has indicated clearly that she is not interested in making an acquaintance, amounts to stalking as per Section 354D. It also covers online stalking that is to say monitoring her use of the internet, email or other forms of electronic communications.

Section 354D states as follows: Any man who-

- (i) follows a woman and contacts, or attempts to contact such woman to foster personal interaction repeatedly despite a clear indication of disinterest by such woman; or
- (ii) monitors the use by a woman of the internet, email or any other form of electronic communication, commits the offence of stalking;

Exceptions to stalking

- (1) If the woman is pursued by the man as a part of his responsibility to the state, to detect a crime or prevent one from happening;
- (2) To abide by any condition or law given by a person authorised by law;
- (3) Other situations that might make his conduct reasonably justifiable.

KIDNAPPING - SECTION 360-361

The literal meaning of kidnapping is stealing of a child. There are two types of kidnapping that are recognized by Indian Penal Code. One is kidnapping from India and the other is kidnapping from lawful guardianship.

Kidnapping from India - Kidnapping from India means taking anybody, without his consent, out of the borders of India.

Section 360 defines it as follows

Whoever conveys any person beyond the limits of India without the consent of that person or of some person legally authorized to consent on behalf of that person, is said to kidnap that person from India.

ILLUSTRATION: If A takes B without his consent or without B's lawful guardians' consent to Canada, A would be committing this offence.

Essential ingredient:

- (1) The person should be conveyed out of the borders of India.
- (2) The person should be conveyed without his consent or without the consent of the person who is legally authorized to consent on his behalf.

Thus, if a person is not capable of giving valid consent as in the case of a minor or a person with unsound mind, the consent of his lawful guardian is required to take him outside India.

Kidnapping from Lawful guardianship

Kidnapping from lawful guardianship means taking a child away from his lawful guardian without the guardian's consent.

Section 361 defines it as follows:

Whoever takes or entices any minor under 16 years of age if male or 18 years of age if female, or any person of unsound mind, out of the keeping of the lawful guardian of such minor or person of unsound mind, without the consent of such guardian, is said to kidnap such minor or person from lawful guardianship.

Explanation - The words lawful guardian in this section include any person lawfully entrusted with the care or custody of such minor or other person.

Exception - This section does not extend to the act of any person who in good faith believes himself to be the father of an illegitimate child or who in good faith believes himself to be entitled to the lawful custody of such child, unless such act is committed for an immoral or unlawful purpose.

Essential ingredients:

- (1) The person should either be a minor or a person of unsound mind - This implies that the person is not capable of giving consent. In case of male child, the age is 16 years while in case of a female child the age is 18 years. For a person of unsound mind, age is immaterial.
- (2) Such person be taken or enticed away - This means that either force is used or any enticement that causes the person to leave domain of the lawful guardian is used.

ILLUSTRATION: A shows toffee to a child C thereby causing the child to come out of the house and follow A, it falls under this category.

- (3) Such person must be taken or enticed away from the lawful guardian - Only when the child is under the lawful guardian, can he be kidnapped. This means that the child should be under the domain of the lawful guardian.

ABDUCTION - SECTION 362

In abduction there should be some active suggestion on part of the accused person, which causes the person abducted to go to some place, where he would not have otherwise gone.

Section 362 of the Indian Penal Code defines the offence of Abduction. It states as follows:

Whoever by force compels, or by any deceitful means induces, any person to go from any place is said to abduct that person.

Essential ingredients:

- (1) A person goes from one place to another - A person cannot be abducted at the same place where he is. For abduction to take place, the person should physically move from one place to another.
- (2) Either by forcible compulsion or by inducement - The movement of the person must be because of some compulsion or because of some inducement.
ILLUSTRATION: A threatens B on gun point to go from his house to another city. Here, A has compelled B to go from his house and is thus guilty under this section.
- (3) The age of the abducted person is immaterial.

DISTINCTION BETWEEN KIDNAPPING AND ABDUCTION

KIDNAPPING	ABDUCTION
It is committed only in respect of A minor under 16 years of age if A male and 18 years of age if a Female, or a person of unsound mind.	It is committed in respect of any person of any age.
In kidnapping consent of the person enticed is immaterial.	Consent of the person removed, if freely and voluntarily given, Condones the offence.
In kidnapping the intention of the offender is irrelevant.	In abduction intention plays an important factor.
It is not a continuing offence. The Offence is completed as soon as the minor is removed from the Custody of his or her guardian	It is a continuing offence. A person is being abducted both when he is first taken from one Place to and also when he is Removed from one place to Another

RAPE – SECTION 375

The word rape is derived from the Latin term rapio, which means to seize. Thus, it literally means a forcible seizure and that is the essential characteristic feature of the offense. In common parlance, it means intercourse with a woman without her consent by force, fear, or fraud.

A man is said to commit “rape” if he— (a) penetrates his penis, to any extent, into the vagina, mouth, urethra or anus of a woman or makes her to do so with him or any other person; or (b) inserts, to any extent, any object or a part of the body, not being the penis, into the vagina, the urethra or anus of a woman or makes her to do so with him or any other person; or (c) manipulates any part of the body of a woman so as to cause penetration into the vagina, urethra, anus or any part of body of such woman or makes her to do so with him or any other person; or (d) applies his mouth to the vagina, anus, urethra of a woman or makes her to do so with him or any other person, under the circumstances falling under any of the following seven descriptions:

First- Against her will.

Secondly- Without her consent.

Thirdly- With her consent, when her consent has been obtained by putting her or any person in whom she is interested, in fear of death or of hurt.

Fourthly- With her consent, when the man knows that he is not her husband and that her consent is given because she believes that he is another man to whom she is or believes herself to be lawfully married.

Fifthly- With her consent when, at the time of giving such consent, by reason of unsoundness of mind or intoxication or the administration by him personally or through another of any stupefying or unwholesome substance, she is unable to understand the nature and consequences of that to which she gives consent.

Sixthly- With or without her consent, when she is under eighteen years of age.

Seventhly- When she is unable to communicate consent.

Consent:

Consent means an unequivocal voluntary agreement when the woman by words, gestures or any form of verbal or non-verbal communication, communicates willingness to participate in the specific sexual act.

A woman who does not physically resist to the act of penetration shall not by the reason only of that fact, be regarded as consenting to the sexual activity.

Exceptions:

1. A medical procedure or intervention shall not constitute rape.
2. Sexual intercourse or sexual acts by a man with his own wife, the wife not being under fifteen years of age, is not rape.

Consent obtained when the woman is intoxicated is of an unsound mind

A consent obtained during the state of unsoundness and intoxication cannot be termed as valid consent.

Section 376: Punishment for rape

Section 376A: Punishes sexual intercourse with wife without her consent by a judicially separated husband.

Section 376B: Punishes sexual intercourse by a public servant with woman in his custody.

Section 376C: Punishes sexual intercourse by Superintendent of Jail, Remand Home, etc., with inmates in such institutions

Section 376D: Punishes sexual intercourse by any member of the management or staff of a hospital with any woman in that hospital.

Section 376E: A repeat rape offender will have to be imprisoned for the rest of his life or sentenced to death.

UNNATURAL OFFENCES – SECTION 377

Section 377 of the Indian Penal Code is a piece of legislation in India introduced during British rule of India that criminalises sexual activity "against the order of nature." In a historic judgment in 2018, a five-judge Supreme Court bench struck down Section 377 of the Indian Penal Code in *Navtej Johar vs Union of India*.

Section 377 continues to apply in the case of sex involving minors and coercive sex.

Section 377 of the Indian Penal Code, 1860 - Unnatural offences. It states that whoever voluntarily has carnal intercourse against the order of nature with any man, woman or animal, shall be punished with imprisonment for life, or with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine.

Explanation- Penetration is sufficient to constitute the carnal intercourse necessary to the offence described in this section.

CASE LAW: NAVTEJ JOHAR VS UNION OF INDIA

Facts in brief: A writ petition was filed on 26th April 2016 by Navtej Singh Johar, along with 4 others to challenge the constitutional validity of Section 377 of IPC which criminalizes consensual sexual intercourse between same-sex adults in private. In the prayer, the petitioners prayed for declaration of “right to sexuality”, “right to sexual autonomy” and “right to choice of a sexual partner” to be a part of right to life guaranteed by Article 21 of the Constitution of India. It was also prayed by the petitioners to declare Section 377 of the Indian Penal Code as unconstitutional.

Held: The bench found that Section 377 discriminates against individuals based on their sexual orientation and/or gender identity, violating Article 14 and 15 of the Constitution. Further, they ruled that Section 377 violates the rights to life, dignity, and autonomy of personal choice under Article 21. Finally, they found that it inhibits an LGBT individual’s ability to fully realize their identity, by violating the right to freedom of expression under Article 19(1)(a).

Add Assault; Force; Criminal Force